

been rendered necessary by the default of such defendant) but there shall be deducted from such costs any sum or sums which may have been paid by the plaintiff, according to the course of the Court, at the time of any amendment.

English Order. That, when upon taxation a plaintiff, who has obtained
3 April, 1828. a Decree with costs, is not allowed the costs of any
Order 30. amendment of the bill upon the ground of its having been
Amendment of Bill in Plain- unnecessarily made, the defendant's costs occasioned by
tiff's costs. such amendment shall be taxed, and the amount thereof
deducted from the costs to be paid by the defendant to
the plaintiff.

English Order. That from and after the 26th day of October next, if a
5 Aug., 1818. party gives notice of motion, and does not move accord-
Costs of Aban- ingly, he shall, when no affidavit is filed, pay to the other
doned Motions. side forty shillings costs upon production of the notice of
motion; but, where an affidavit is filed by either party,
the party giving such notice of motion and not moving
shall pay to the other side costs, to be taxed by the Mas-
ter, unless the Court itself shall direct, upon production of
the notice of motion, what sum shall be paid for costs.

English Order. That, when a cause which stands for hearing is called
3 April, 1828. on to be heard, but cannot be decided by reason of a want
Order 34. of parties or other defect on the part of the plaintiff, and
Cause struck out by default is therefore struck out of the paper, if the same cause is
of Plaintiff. again set down, the defendant or defendants shall be
allowed the taxed costs occasioned by the first setting
down, although he or they do not obtain the costs of the
suit.

English Order. That, where a cause being in the paper for hearing is
3 April, 1828. ordered to be adjourned upon payment of the costs of the
Order 35. day, then the party to pay the same whether before the
Costs of day. Lord High Chancellor or the Master of the Vice Chan-
cellor shall pay the sum of ten pounds unless the Court
shall make other order to the contrary.

English Order. That, whenever upon the hearing of any cause or other
3 April, 1828. matter it shall appear that the same cannot conveniently
Order 36. proceed by reason of the Solicitor for any party having
Payment by neglected to attend personally or by some proper person
Solicitor of costs of hearing deferred by his on his behalf or having omitted to deliver any paper ne-
deferred by his neglect.

cessary for the
its practice on
shall personally
as the Court sh